

25NNCV07072 25NNCV07072

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Case Number: 25NNCV07072 Hearing Date: July 10, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION

TO COMPEL

Hearing Date: 07/10/2026

CASE

NO./NAME: 25NNCV07072 Quinn v. Valley Post-Acute and Rehab LLC, et al.

Moving Party: Plaintiff,

Quinn

Responding Party: N/A

Notice: Sufficient

Ruling: GRANT

NOTICE

The Court is not requesting oral argument

on this matter. The Court is guided by California Rules of Court, Rule

3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is an elder abuse case. Harvey Olen Quinn by and through his successor in interest, Beverly Rodriguez ("Plaintiff") move the Court for orders to compel Defendant Valley Post-Acute and Rehab, LLC ("Valley Post-Acute") (to serve responses to the Special Interrogatories, Set Two ("SROGs") and Requests for Production of Documents, Set Three ("RPDs"). This ruling addresses both motions. As of July 6, 2026, no opposition has been filed.

LEGAL

STANDARD

A party must respond to interrogatories and requests for production within 30 days after service. (Code Civ. Proc., § 2030.260, subd.

(a) [interrogatories]; Code Civ. Proc., § 2031.260, subd. (a) [requests for

production].) If a party to whom interrogatories and requests for production are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2030.290, subd. (b) [interrogatories]; Code Civ. Proc., § 2031.300, subd. (b) [requests for production].) The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2030.290, subd. (a); Code Civ. Proc., § 2031.300, subd. (a).)

There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.)

“The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes: “(d) failing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc. § 2023.010, subd. (d).) Reasonable expenses under Code of Civil Procedure section 2023.030, subdivision (a) include the time spent in researching and preparing the motion, as well as court time and travel time spent in connection with the motion. (Ghanooni v. Super Shuttle, (1993)

20 Cal.App.4th 256, 262.)

DISCUSSION

a. Motions to Compel

Here, on January 22, 2026, Plaintiff

served RPDs and SROGs on Valley Post-Acute. (Garcia Decl., ¶ 2.) On February

24, 2026, Valley Post-Acute requested an extension which was granted making

responses due on March 10, 2026. (Garcia Decl., ¶ 3, Ex. 2.) Valley Post-Acute

has not served responses to the RPDs and SROGs. (Garcia Decl., ¶ 6.)

The Court finds that Valley

Post-Acute has not served responses to the RPDs and SROGs by the agreed upon

deadline and therefore grants Plaintiff's motion to compel.

b. Sanctions

Plaintiff requests \$3,460,000 in

monetary sanctions against Valley Post-Acute and their attorney for each

motion, for a total of \$6,920 across both motions. Plaintiff's counsel, Stephen

Garcia, declares a paralegal spent 1 hour of time drafting each motion at a

rate of \$150 per hour, Mr. Garcia spent .50 hours reviewing the motion, and Mr.

Garcia anticipates spending 2 hours reviewing the opposition and preparing a

reply at a rate of \$1,000 per hour. (Garcia Decl., ¶ 7.) In addition,

Plaintiff's counsel spent \$60 on the filing fee and anticipates spending \$750

in Court reporter fees. (Garcia Decl., ¶ 7.)

Here, the Court exercises its discretion to reduce the

fees as follow: 1 hour spent by the paralegal for drafting each motion at a

rate of \$150 per hour for a total of \$300 across both motions, .5 hours for

attorney review of both motions at a rate of \$1,000 per hour for a total of

\$500 across both motions, plus a one-time fee of \$750 for the court reporter

since both motions are being heard on the same day, and the filing fees for

each motion for a total of \$120 in filing fees. The Court declines to award

sanctions for time anticipated in reviewing an opposition and filing a reply as

no opposition has been filed. The total amount of monetary sanctions against

Valley Acute-Rehab and their counsel for both motions is \$1,670.

CONCLUSION

AND ORDER

Plaintiff's Motion to Compel the Responses to Special

Interrogatories, Set Two propounded on Defendant Valley Post-Acute and Rehab

LLC is GRANTED.

Plaintiff's Motion to Compel the Responses to Requests for

Production of Documents, Set Three, propounded on Defendant Valley Post-Acute

and Rehab LLC is GRANTED.

\$1,670 in sanctions is imposed against Defendant Valley

Post-Acute and Rehab LLC and their counsel.

MOVING PARTY shall provide notice of this order.

MOTION FOR SANCTIONS

BACKGROUND

Plaintiff now moves the Court for evidentiary, issue

and/or monetary sanctions to be awarded against Valley Post-Acute for failure

to comply with the Court's February 6, 2026 Minute Order compelling responses

to the RPDs, SROGs, FROGs, and RFAs. This ruling addresses all four motions. As

of July 6, 2026, no opposition has been filed.

LEGAL

STANDARD

Under

Code of Civil Procedure section 2031.300, "[i]f a party ... then fails to obey

the order compelling a response, the court may make those orders that are just,

including the imposition of an issue sanction, an evidence sanction, or a

terminating sanction under Chapter 7 (commencing with Section 2023.010). In

lieu of or in addition to that sanction, the court may impose a monetary

sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc.,

§ 2030.290, subd. (c).) 22

The "court, after notice to any

affected party, person, or attorney, and after an opportunity for hearing, may impose” monetary, issue, evidence, or terminating sanctions “against anyone engaging in conduct that is a misuse of the discovery process[.]” (Code Civ. Proc., §§ 2023.030; 2023.030, subds. (a)-(d).) Failing to respond or submit to an authorized method of discovery and disobeying a court order to provide discovery are misuses of the discovery process. (Code Civ. Proc., § 2023.010, subds. (d) and (g).)

“The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should ‘attempt [] to tailor the sanction to the harm caused by the withheld discovery.’” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992 [citations omitted].)

DISCUSSION

Plaintiff seeks issue, evidentiary and/or monetary sanctions against Valley Post-Acute for their failure to comply with the Court’s February 6, 2026 Minute Order compelling further responses to Plaintiff’s FROGs, SROGs, RPDs, and RFAs and imposing a monetary sanction of

\$4,500 against Valley Post-Acute and their counsel.

a. Evidence

Sanctions

Plaintiff also moves the Court to

order to preclude Valley Post-Acute from presenting evidence as to the

following:

(1) Valley Post-Acute had sufficient

staff to meet the needs of its residents;

(2) that Valley Post-Acute did not

know their staff who provided “nursing services” were unfit to perform their

job duties;

(3) Valley Post-Acute's managing

agents did not know of the unfitness of their staff who provided “nursing

services” to Plaintiff; and

(4) such actions by Valley Post Acute

were not the proximate cause of Harvey Quinn suffering

from an open coccyx pressure sore while a resident of the facility.

In the alternative, Plaintiff moves

the Court to order Valley Post-Acute to provide verified code-compliant answers

to FROGs, SROGs, RPDs, and RFAs.

When a party violates a discovery order, a trial court may prohibit the violating party from introducing evidence at trial that contradicts the opponent's claims or supports the violating party's defenses. (*Juarez v. Boy Scouts of*

America (2000) 81 Cal.App.4th 377, 387.)

Evidentiary sanctions may be imposed only after a motion to compel is made and granted and the party to be sanctioned has failed to comply with that order. (*Karlsson*

v. Ford Motor Co. (2006) 140 Cal.App.4th 1202, 1214.) However, violation of a discovery order is not a prerequisite to evidentiary sanctions when the offending party has engaged in a pattern of willful discovery abuse that causes the unavailability of evidence. (*Id.* at p. 1215.)

In *Young v. Rosenthal* (1989) 212 Cal.App.3d 96, a party was precluded from testifying after refusing to cooperate with the taking of his deposition. As a result of having failed to comply with the trial court's discovery order only once, the trial court granted a motion for issue and evidence sanctions ordering that certain facts be deemed established according to Plaintiff's claims and that

severe evidentiary limitations be placed on the defendant at trial. (*Young v. Rosenthal* (1989) 212 Cal.App.3d 96, 104-108.)

Here, Plaintiff argues that Valley

Post-Acute has not complied with the February 6, 2026, Minute Order Compelling

Further Responses to FROGs, SROGs, RPDs, and RFAs. Responses were due by March

9, 2026. On May 14, 2026, Plaintiff's counsel, Stephen Garcia, sent a meet and

confer letter to Valley Post-Acute's counsel regarding the further responses

and received no response. (Garcia Decl., ¶¶ 4.) Valley Post-Acute has not

served further responses. (Ibid.)

The Court finds Valley Post-Acute has

engaged in conduct that is a misuse of discovery by disobeying the Court's

February 6, 2026 Minute Order. Valley Post-Acute's initial responses, which led

to Plaintiff's motion to compel further, were entirely boilerplate objections.

(See February 6, 2026 Minute Order.) Nearly 5 months after the motion to compel

further was granted, Valley Post-Acute has not provided the required

supplemental responses. (Garcia Decl., ¶ 6.) Valley Post-Acute has also not

paid the \$4,500 in monetary sanctions imposed against them. (Garcia Decl., ¶

6.) Valley Post-Acute has shown a willful and serious abuse of the discovery

process and notably has not opposed this motion and other discovery-based

motions filed by Plaintiff in this action.

Moreover, this misuse of discovery is not

an isolated incident. The Court previously granted and imposed monetary

sanctions against Valley-Post Acute after Plaintiff filed a Motion to Compel

PMK Deposition. (March 27, 2026 Minute Order.) Mr. Garcia declares that Valley

Post-Acute failed to provide witnesses capable of providing the testimony and

failed to produce documents at the deposition. (Garcia Decl., ¶ 5.) An

evidentiary sanction is necessary to compel compliance because Valley

Post-Acute has shown monetary sanctions are insufficient to ensure they comply

with this Court's orders.

Therefore, Valley Post-Acute is precluded

from introducing evidence as to the following:

(1) Valley Post-Acute had sufficient

staff to meet the needs of its residents;

(2) that Valley Post-Acute did not

know their staff who provided "nursing services" were unfit to perform their

job duties;

(3) Valley Post-Acute's managing

agents did not know of the unfitness of their staff who provided "nursing

services" to Plaintiff; and

(4) such actions by Valley Post Acute

were not the proximate cause of Harvey Quinn suffering

from an open coccyx pressure sore while a resident of the facility.

b. Issue

Sanctions

Plaintiff moves for the following

issue sanctions:

(1) Plaintiff has proven Valley

Post-Acute and Rehab, LLC failed to have sufficient staff to meet the needs of its

residents during the residency of Harvey Quinn on an ongoing basis in violation of 22 Code of

Regulations section 72329;

(2) Valley Post-Acute knew their

staff was unfit to perform their job duties;

(3) that in doing so Valley

Post-Acute employed their staff with the knowing disregard for the rights and safety

of Harvey Quinn; and

(4) such action was the proximate

cause of Harvey Quinn suffering from an avoidable, open coccyx pressure

sore.

In light of this Court's ruling on

Plaintiff's request for evidentiary sanctions, Plaintiff's additional request

in the alternative for issue sanctions is denied.

c. Monetary

Sanctions

In addition to or in lieu of any other sanction, the

court may order the disobedient party or counsel responsible or both to pay the

reasonable expenses, including attorney fees, incurred as a result of the

failure to obey (including fees on the sanctions motion). (Code Civ. Proc. § 2023.030, subd. (a).)

Plaintiff also seeks monetary sanctions be

imposed against Valley Post-Acute and their counsel in the amount of \$3,500 for

each motion for a total of \$14,000. Mr. Garcia declares a senior associate

spent 1.5 hours drafting each motion at a rate of \$425 per hour and Mr. Garcia

himself has spent 1 hour on each motion at a rate of \$1,000 per hour. (Garcia

Decl., ¶ 5.) Mr. Garcia anticipates spending 3 hours reviewing the opposition

and preparing a reply, and Mr. Garcia anticipates spending \$750 in Court reporter

fees for each motion. (Ibid.) Mr. Garcia also paid the \$60 filing fee

for each motion. (Ibid.)

Here, the motions are substantially

similar and thus the Court will exercise its discretion and reduce the monetary

sanctions as follows: 1 hour for drafting each motion at a rate of \$425 per

hour for a total of \$1,700, plus .5 hours reviewing each motion for a total of

\$2,000, plus the \$60 filing fee for each motion for a total of \$240, and a

one-time court report fee of \$750 since all motions are being heard on the same

day, for a total of \$4,690 in monetary sanctions against Valley Post-Acute and their counsel.

CONCLUSION AND

ORDER

Plaintiff's Motion for Sanctions is GRANTED in part.

Defendant Valley Post-Acute is precluded

from introducing evidence as to the following:

(1) Valley Post-Acute had sufficient

staff to meet the needs of its residents;

(2) that Valley Post-Acute did not

know their staff who provided "nursing services" were unfit to perform their

job duties;

(3) Valley Post-Acute's managing

agents did not know of the unfitness of their staff who provided "nursing

services" to Plaintiff; and

(4) such actions by Valley Post Acute

were not the proximate cause of Harvey Quinn suffering

from an open coccyx pressure sore while a resident of the facility.

The Court orders Defendant Valley

Post-Acute to serve code compliant supplemental responses to Plaintiff's RFAs,

SROGs, FROGs, and RPDs and pay the \$4,500 in sanctions previously imposed in the Court's February 6, 2026 Minute Order.

Defendant Valley Post-Acute and their

counsel are ordered to pay Plaintiff and their counsel \$4,690 in monetary sanctions.

MOVING PARTY shall provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court